

agree to mediation.						
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	134 days	34%	161 days	59%	170 days	62%

	2016-17		2015-16		2014-15	
Decisions	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	81 days	68%	86 days	76%	68 days	82%
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days.	312 days	17%	300 days	36%	230 days	39%

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Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The LTB is established under the [Residential Tenancies Act \(RTA\)](#).

Operational Highlights

Case Management Hearings – A New Approach to Applications for Rent Increase above the Guideline

In March 2017, the LTB began to hold case management hearings for applications filed by landlords who want to raise rent above the guideline because they have made capital expenditures (renovations, repairs, replacements or additions). The case management hearing provides both sides the opportunity to discuss, and possibly agree on, a fair rent increase.

During a case management hearing, a dispute resolution officer tries to help the two sides reach an agreement. If an agreement is reached, the dispute resolution officer records the terms of the agreement in an order called a consent order. If the application is not settled at the case management hearing, it is scheduled for a full hearing with an adjudicator on another day.

The dispute resolution officers follow a standard case management hearing structure, offering a consistent and transparent approach to resolving above guideline increase applications. Landlords and tenants receive information on how to prepare for the case management hearing together with their notice of hearing.

Emailing Notice of Hearing Packages to Bulk Filers

In March 2017, bulk filers (people filing more than three applications at a time) started receiving their notice of hearing packages by email instead of regular mail. Bulk filers now receive their notices of hearing more quickly

than they did before.

The change was made after consultations and testing with stakeholders. Bulk filers also have the option to pick up the hearing packages at the LTB office.

At the same time, the LTB introduced the Bulk Application Information Sheet. On the sheet, applicants provide information about the applications in the bulk filing, who should receive the packages, and whether they will pick up the Notice of Hearing packages or want them emailed.

Changes to Application Fees

LTB application fees for most applications increased on January 16, 2017 by about 10%. Fees were also introduced for two tenant applications which were previously free, bringing all tenant applications to \$50. Tenant application fees had not increased since the LTB was established in 1998. Landlord application fees were last increased in 2009.

At the same time as the fee increase, the LTB introduced a 10% discount for applications filed through LTB e-File. After the discount was introduced, the number of e-filed applications increased by 65%.

People who have a low income can request that the application filing fees be waived. The income threshold for fee waivers was increased by 10% to offset the fee increase.

New Notice for Victims of Sexual and Domestic Violence to End Tenancy Early

In September, the *Residential Tenancies Act* changed to allow tenants who are victims of sexual and domestic violence to end their tenancy in 28 days if they believe they or a child living with them may be harmed or injured if they don't leave the unit.

As a result of the legislative change, the LTB, in consultation with its Practice Advisory Committee, created a new Tenant's Notice to End my Tenancy Because of Fear of Sexual or Domestic Violence and Abuse (N15), a new Tenant's Statement about Sexual or Domestic Violence and Abuse.

Full-day Hearing Blocks

In the summer of 2016, the LTB began scheduling full day hearing blocks in Scarborough (in the Toronto East office), Whitby and LTB Central office in Mississauga. Before the change, hearings were scheduled in half day hearing blocks at these locations.

Full day hearing blocks increase the likelihood that all scheduled cases will be heard on the day, and not adjourned due to lack of time. For example, parties who want to speak to tenant duty counsel or try mediation will still have enough time for a hearing on the same day.

The change in scheduling will be monitored to make sure it results in more timely dispute resolution.

The Toronto South and Toronto North offices moved to full day hearings in 2015.

Changes to how the LTB Handles Requests to Review an Order

In July 2016, the LTB made the following changes to how it handles requests to review an order.

Preliminary reviews – All preliminary reviews of a [Request to Review an Order](#) are now conducted by a vice chair or other senior LTB member. Previously, any member could conduct this review.

Review hearings – If there is a review hearing, the member who did the preliminary review decides which member will conduct the review hearing within these parameters:

- Requests to review that claim a party was not reasonably able to participate can be heard by any member, including the member who issued the original order.
- Requests to review that ask the LTB to consider new evidence will usually be assigned to the same

member who issued the original order.

- Requests to review that allege a serious error will be heard by the vice chair or senior member.

Previously, the member who made the order could not be assigned to conduct the hearing. The rules now also clarify that although the LTB can initiate a review without receiving a request from one of the parties (rule 29.4), a party cannot request that the LTB exercise this power. A party must request a review using rule 29.1.

Accepting Application-specific Inquiries by Email

In June 2016, all LTB offices started accepting emails from parties about their case. For example, parties can email documents for their application file or respond to LTB requests for dates they are not available, so the LTB can schedule a hearing. Each LTB office has its own email address. LTB staff received 23, 844 emails through those accounts from June 1, 2016 – March 31, 2017.

For many people, email is more convenient than going to an office or waiting to speak to someone on the phone. It also gives people a way to contact the LTB outside of business hours.

The LTB only responds to application-specific inquiries by email. People with general questions about the LTB application and hearing process or the rights and responsibilities of landlords and tenants, should visit the website or call the LTB.

Case Management Hearings Pilot Update

From September 2014 to April 2015, the LTB did a pilot project which required parties to participate in case management hearings (CMHs) for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6) at its Toronto South and Southern offices. The case management hearing provided both sides the opportunity to discuss, and possibly agree on, a solution that wasn't imposed by the adjudicator.

This year, the LTB evaluated the settlement rates and adjournment (rescheduling) rates of cases which went to a CMH. The results showed that more than two thirds of the cases were not resolved at the CMH and required a full merits hearing. At one office, the adjournment rate of CMH cases was higher than the rate for merits hearings. After reviewing the results of the pilot and consulting with stakeholders, the LTB decided to suspend the pilot (in that form) on January 23, 2017.

The LTB is now using the pilot experience to identify the types of applications that are best suited to the CMH process, including those for Above Guideline Increase Applications, which were introduced in March 2017.

LTB e-File

Launched in July 2015, LTB e-File allows landlords and tenants across Ontario to file the most common LTB applications online, anytime from anywhere.

During the 2016-17 fiscal year, the LTB received 20,971 applications online.

- 74.7% (15,674) were L1 applications
- 15.0% (3,153) were L2 applications
- 7.5% (1,573) were T2 applications
- 2.7% (357) were T6 applications

32.2% of the 64,951 L1, L2, T2 and T6 applications filed with the LTB during the year were filed using e-File. This is a nearly 10% increase over last year. In part, the increase can be attributed to the 10% discount for e-filed applications introduced in January 2017.

- 31.7% of all L1 applications (49,488)
- 31.6% of all L2 applications (9,982)
- 41.3% of all T2 applications (3,807)
- 21.3% of all T6 applications (1,674)

72.1% of e-File applications were scheduled for a hearing date online: 77.1% of landlord applications and 28.2%

of tenant applications. This is an increase of 3% over last year.

23.19% (4864) of e-File applications were filed outside of business hours, a 4% increase over last year.

Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered to more than 60 ServiceOntario locations across the province.

LTB e-File Survey

Conducted over three weeks in May 2016, the LTB e-File survey received responses from 112 people, 63 of whom said they used the tool. Of those, 89 % said they found it user-friendly. The most common suggestions for improvement were:

1. More scheduling options
2. The ability to combine applications
3. The ability to e-file additional application types

The LTB will consider these suggestions when it upgrades the LTB e-File tool.

Statistics

In 2016-17, the LTB received 81,432 applications. This total includes landlord, tenant and co-op applications. This is an increase of 1.52% or 1,218 applications compared to 2015-16.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with roughly 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 61% were to terminate a tenancy because of non-payment of rent.

Table 1: Call Centre

	2016-17	2015-16	2014-15
Calls handled	261,154	299,143	286,869
Average time per call	05:19	04:45	05:10
Average wait time in the queue	09:46	05:06	06:46

Table 2: All Applications Received, Resolved and Open at Year End

	2016-17	2015-16	2014-15
Applications Received*	81,432	80,214	79,740
Applications Resolved	78,783	78,175	77,148
Open at year-end**	13,899	11,946	10,286

* The 2015-16 and 2016-17 totals include non-profit co-operative housing eviction applications.

** In a small number of cases, "resolved" applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal

the number from the previous year plus "applications received", less the "applications resolved".

It has come to light that at least 25% of applications that are listed as "open at year-end" in the case management system are in fact resolved. Staff are working to update the status of these applications.

Table 3: Landlord/Tenant Applications by Method of Resolution

Resolution Type	2016-17	2015-16	2014-15
Abandoned ¹	3,168	2,673	2,668
Resolved by Mediation ²	10,735	11,541	11,926
Resolved at Hearing ³	49,901	48,533	48,107
Resolved without Hearing ⁴	3,997	4,397	4,402
Review Denied	903	729	675
Withdrawn	8,264	7,487	7,369
Other ⁵	1,815	2,413	2,001
Total	78,783	77,773	77,148

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 4: Co-op Eviction Applications by Method of Resolution

Resolution Type	2016-17	2015-16	June 1, 2014 - March 31, 2015
No Hearing ¹	133	91	22
Case Management Hearing Only	288	236	110
Merit Hearing Only	25	10	10
Both Case Management Hearing and Merit Hearing	79	65	16
Total	525	402	158

¹ Application withdrawn/discontinued; parties settled the issues on their own

Table 5: Landlord and Tenant Applications Received by Region

Head Office*	Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total

8,774	8,244	3,952	11,680	14,132	11,002	11,609	11,222	8,774	81,432
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* When the system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 6: Co-op Applications Received by Region

Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
51	43	22	62	124	136	64	80	582

Table 7: Landlord Applications Received by Type

Case Type	Application Description	2016-17	2015-16	2014-15
A1	Determine Whether the Act Applies	104 (0.1%)	67 (0.1%)	55 (0.1%)
A2	Sublet or Assignment	264 (0.3%)	234 (0.3%)	263 (0.4%)
A3	Combined Application (usually includes an L1)	4,067 (5.6%)	4,050 (5.7%)	3,986 (5.6%)
A4	Vary Rent Reduction Amount	134 (0.2%)	76 (0.1%)	135 (0.2%)
L1	Terminate & Evict for Non-Payment of Rent	49,489 (67.6%)	48,940 (68.4%)	49,991 (70.0%)
L2	Terminate for Other Reasons & Evict	9,987 (13.6%)	8,876 (12.4%)	7,983 (11.2%)
L3	Termination - Tenant Gave Notice or Agreed	1,439 (2.0%)	1,338 (1.9%)	1,208 (1.7%)
L4	Terminate the Tenancy - Failed Settlement	5,478 (7.5%)	5,559 (7.8%)	5,632 (7.9%)
L5	Rent Increase Above the Guideline	575 (0.8%)	433 (0.6%)	548 (0.8%)
L6	Review of Provincial Work Order	3 (0.0%)	15 (0.0%)	8 (0.0%)
L7	Transfer Tenant to Care Home	1 (0.0%)	6 (0.0%)	0 (0.0%)
L8	Tenant Changed Locks	37 (0.0%)	28 (0.0%)	31 (0.0%)
L9	Application to Collect Rent	1,628 (2.2%)	1,892 (2.6%)	1,735 (2.4%)
	Total	73,188	71,514	71,575

Table 8: Tenant Applications Received by Type

Case Type	Application Description	2016-17	2015-16	2014-15
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A1	Determine Whether the Act Applies	49 (0.6%)	64 (0.8%)	59 (0.7%)
A2	Sublet or Assignment	55 (0.7%)	68 (0.8%)	55 (0.7%)
A3	Combined Application	1,634 (19.8%)	1,586 (19.3%)	1,921 (24.1%)
A4	Vary Rent Reduction Amount	0 (0.0%)	0 (0.0%)	0 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	732 (8.9%)	663 (8.1%)	716 (9.0%)
T2	Tenant Rights	3,807 (46.1%)	3,922 (47.7%)	3,441 (43.2%)
T3	Rent Reduction	68 (0.8%)	67 (0.8%)	69 (0.9%)
T4	Failed Rent Increase Above Guideline	6 (0.0%)	0 (0.0%)	1 (0.0%)
T5	Bad Faith Notice of Termination	211 (2.6%)	174 (2.1%)	170 (2.1%)
T6	Maintenance	1,675 (20.3%)	1,661 (20.2%)	1,516 (19.1%)
T7	Suite Meters	7 (0.0%)	23 (0.3%)	9 (0.0%)
	Total	8,244	8,228	7,957

Table 9: Co-op Applications Received by Type

Case Type	Application Description	2016-17	2015-16	June 1, 2014 - March 31, 2015
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	274 (47%)	252 (53.3%)	132 (63.4%)
C1/2	Combined C1 and C2 applications	102 (17.5%)	74 (15.6%)	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	93 (16%)	73 (15.4%)	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	3 (0.01%)	5 (1%)	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a	110 (18.9%)	68 (14.4%)	14 (7%)

	Settlement/Order			
	Total	525	472	208

Service Standards

SJTO aims to meet its service standards 100% of the time. However, this is not always possible, and our commitment is to fulfil these standards at least 80% of the time.

	2016-17		2015-16		2014-15	
Standard	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Applications will be scheduled for a hearing within 25 business days	26.6 days	52%	23.3 days	69%	21 days	78%
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	5.2 days	78%	4.6 days	83%	3.6 days	89%

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Social Benefits Tribunal